

SENATE No. 851

The Commonwealth of Massachusetts

PRESENTED BY:

Julian Cyr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act addressing unfair practices of private equity in health care.

PETITION OF:

NAME:

Julian Cyr

DISTRICT/ADDRESS:

Cape and Islands

SENATE No. 851

By Mr. Cyr, a petition (accompanied by bill, Senate, No. 851) of Julian Cyr for legislation to address unfair practices of private equity in health care. Health Care Financing.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act addressing unfair practices of private equity in health care.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 111 of the General Laws is hereby amended by inserting after section 244 the
2 following section:-

3 “Section 255. (a) A provider of health care services licensed by the department shall not
4 refuse to negotiate in good faith to provide contracted services to a public or private payor and
5 seek payment for a non-contracted service in excess of 200 percent of the payor’s average
6 contracted reimbursement rate for that service.

7 (b) A violation of this section shall be an unfair or deceptive act or practice under chapter
8 93A.”